



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Athen Mores
Subject: PUDC-24-28 | Toledo Annexation 4204 Dell Range Boulevard – Assigned Zoning
Date: April 8, 2024

Background:

The item for consideration is an assigned zoning. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 04/08/2024
- Public Services Committee 04/16/2024
- Second reading 04/22/2024
- Public Services Committee 05/07/2024
- Third and final reading 05/13/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their April 1, 2024 meeting and recommended the Governing Body approve this application unanimously.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE ESTABLISHING THE ZONING CLASSIFICATION OF CITY MR MEDIUM DENSITY RESIDENTIAL FOR LAND ANNEXED TO THE CITY OF CHEYENNE LOCATED AT 4204 DELL RANGE BOULEVARD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. Gabino Toledo, owners of:

A PARCEL OF LAND SITUATE IN A PORTION OF THE SOUTHWEST QUARTER (SW¼) SOUTHEAST QUARTER (SE¼) SECTION 22, T. 14 N., R. 66 W., 6TH P.M., LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS: BEGINNING AT THE INTERSECTION OF THE EAST LINE OF GRIFFITH AVENUE AND THE NORTH LINE OF DELL RANGE BOULEVARD; THENCE N. 00°32'00"W. ALONG THE SAID EAST LINE A DISTANCE OF 252.00 FEET TO THE SOUTHWEST CORNER OF NORTHWOODS COMMUNITY CHURCH SUBDIVISION; THENCE S 89°38'00" E. A DISTANCE OF 277.18 FEET TO THE SOUTHEAST CORNER OF SAID SUBDIVISION AND A POINT ON THE WEST LINE OF MISSION VILLAGE; THENCE S. 00°32'00" E. ALONG THE SAID WEST LINE A DISTANCE OF 252.23 FEET TO THE SOUTHWEST CORNER OF SAID MISSION VILLAGE AND A POINT ON THE NORTH LINE OF DELL RANGE BOULEVARD; THENCE N. 89°35'06" W. ALONG THE SAID NORTH LINE A DISTANCE OF 277.18 FEET TO THE POINT OF BEGINNING.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof.

Section 2. That Section 2.2.8 of the UDC provides standards and procedures for zoning districts established on land or property currently without a City zone assignment including land being annexed to the city.

Section 3. That on April 1, 2024, the City of Cheyenne Planning Commission conducted public hearings, reviewed the proposed zoning assignment that is the subject of this ordinance, and recommended approval of said zoning assignment.

Section 4. That the Governing Body of the City of Cheyenne finds that the zoning assignment that is the subject of this ordinance meets the criteria specified in Section 2.2.8.d of the UDC.

Section 5. That in accordance with Section 2.2.8, Assigned Zoning, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the zoning

classifications of the real property as described in Section 1 is hereby established as MR Medium Density Residential.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication, and upon approval and publication of the affiliated annexation.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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CITY OF CHEYENNE PLANNING COMMISSION

April 1, 2024

STAFF REPORT

FILE: PUDC-24-28 Toledo Annexation, Assigned Zoning

LOCATION: 4204 Dell Range Blvd.

REQUEST: Assigned zoning for 1.60 acres of land being annexed from County MR to City MR.

ANNEXATION APPLICANT: Cotton Jones

OWNER: Gabino Toledo, Na Zhang

ZONING: County MR to City MR

FUTURE LAND USE: Mixed-use Residential

PURPOSE: To establish a City zoning district concurrent with annexation.

PREPARED BY: Athen Moers- Planner



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the assigned zoning for land at 4204 Dell Range Blvd to City MR Medium Density Residential as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.8 Assigned Zoning

BACKGROUND:

The applicant has petitioned for 1.60 acres of land located at 4204 Dell Range Blvd to be annexed into city limits. Annexation of a parcel requires a city zone to be established. Per UDC 2.2.8 a zone will be assigned based on the underlying county zone and per the policy document adopted by the city. Should the applicant wish to have a different zone at the time of annexation, they will be required to submit a subsequent zoning map amendment, proposing a different zone. The applicant is not requesting a different City zone at this time.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

- 1) **The assigned zone is the most analogous City zone to the current zone when considering allowed uses. Zoning for standard County zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis. (UDC 2.2.8.d.1)**

The underlying county zone is MR Medium Density Residential. The most analogous city zone is MR Medium Density Residential according to the policy document. The Assigned Zoning policy document is attached to the staff report as attachment number three.

Establishment of the City zone matches the policy document; therefore, the item **complies** with review criterion 1.

STAFF REVIEW:

Through the review process, there were no comments.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.8.(d).

ALTERNATIVES:

1. Recommend approval of the Assigned Zoning as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the Assigned Zoning subject to conditions or modifications.

3. Recommend denial of the Assigned Zoning based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Assigned Zoning until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

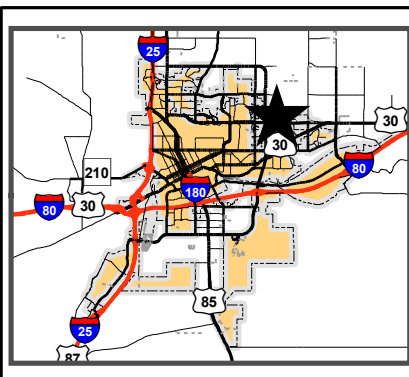
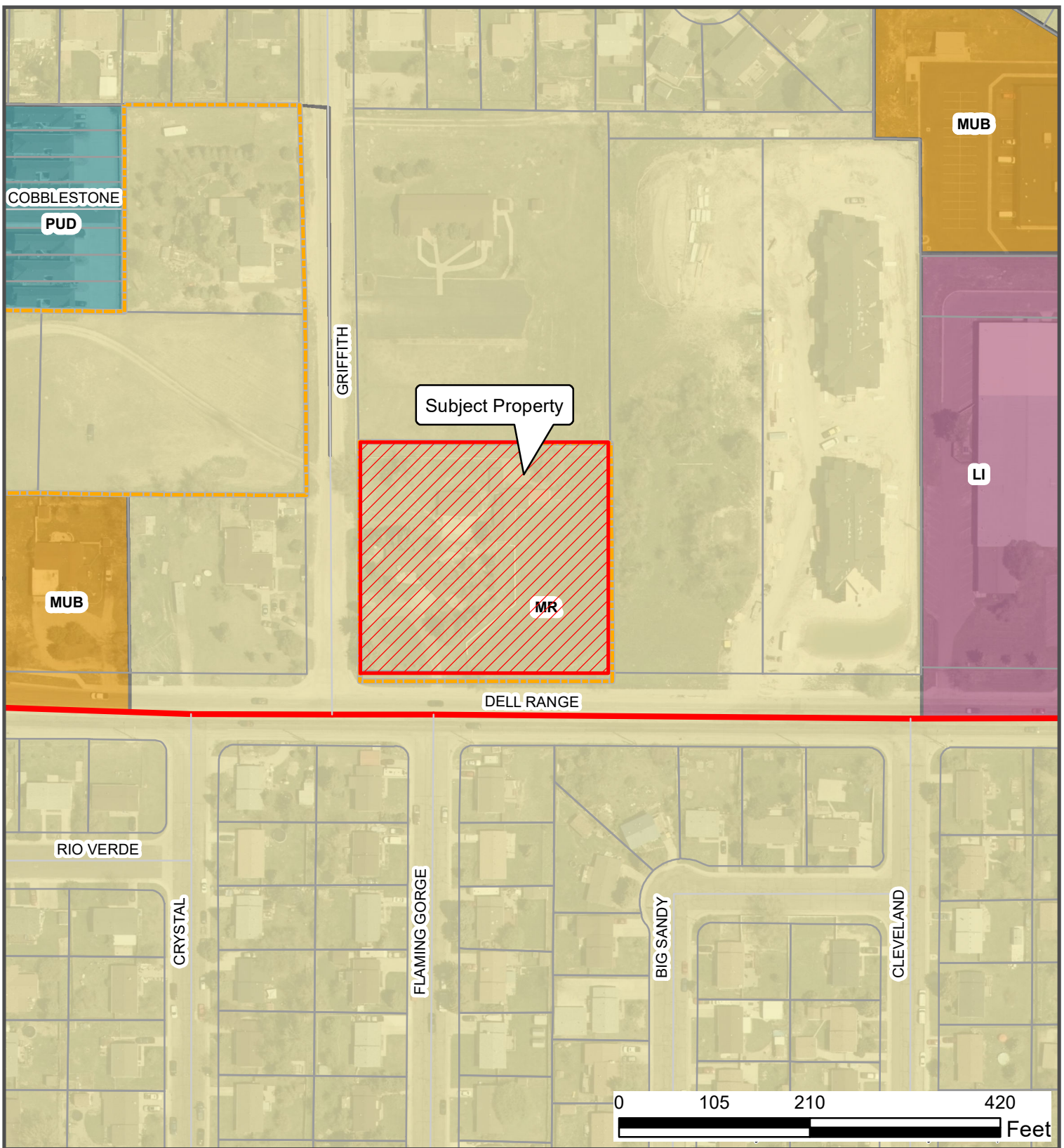
If the Commission acts contrary to staff's recommendation or recommends conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for their recommendation.

STAFF RECOMMENDATION:

Staff recommends approval of the assigned zoning for land located at 4204 Dell Range Blvd to MR Medium Density Residential as shown in the attached zone change map, noting that the project meets the review criteria for approval.

ATTACHMENTS:

1. Zoning Map
2. Annexation Map
3. Assigned Zoning Policy Document
4. Use Differences

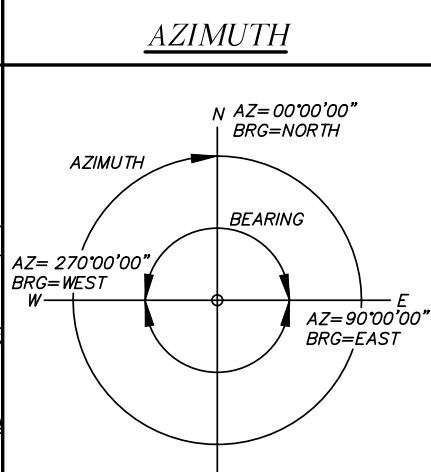
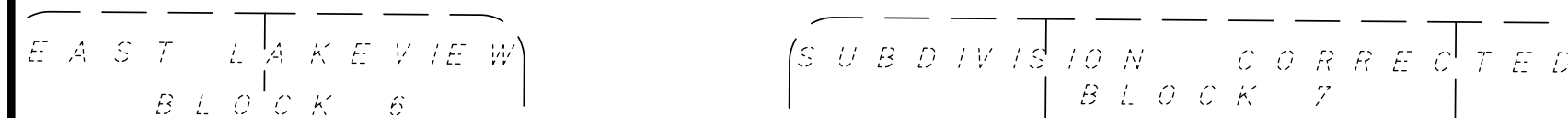


Attachment 1: Zoning Map PUDC-24-28

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



A north arrow pointing upwards, labeled 'N' at the center. Below the arrow is a graphic scale bar. The bar is divided into four equal segments, each with a different hatching pattern. The segments are labeled from left to right as 60, 0, 60, and 60. Below the bar, the text reads "Scale 1" = 60'".



City of Cheyenne

Planning and Development Department
2101 O'Neil Avenue, Room 202 Cheyenne, WY 82001
www.cheyennecity.org/PlanningAndDevelopment

Assigned Zone Chart

Underlying County Zone	Analagous City Zone
AR - Agricultural Residential	AR - Agricultural Residential
A1 - Agricultural and Rural Residential	AG - Agriculture
A2 - Agricultural	AG - Agriculture
LR - Low Density Residential	LR - Low Density Residential
MR - Medium Density Residential	MR - Medium Density Residential
HR - High Density Residential	HR - High Density Residential
NB - Neighborhood Business	NB - Neighborhood Business
CB - Community Business	CB - Community Business
LI - Light Industrial	LI - Light Industrial
HI - Heavy Industrial	HI - Heavy Industrial
P - Public	P - Public
MU - Mixed Use	MUR - Mixed-use Residential
Zone not listed above	Based on existing uses

County MR - MEDIUM DENSITY RESIDENTIAL
<i>Uses By Right</i>
Family child care homes
Home occupations
Single-family residential
Duplexes and townhouses
Family child care center
Offices when the building area does not exceed 3,500 square feet
Residential accessory uses
Churches, temples or other places of worship
Primary and secondary schools
Multi-family residential
<i>Uses requiring Board Approval (Conditional Use)</i>
Bed and breakfasts
Dormitories
Group dwellings
Hospitals and nursing homes
Manufactured housing parks
Offices
Assisted living facilities
Accessory living quarters
Other uses similar to those permitted in this district

City MR - MEDIUM DENSITY RESIDENTIAL
<i>Uses By Right</i>
Detached Dwelling
Semi-attached Dwelling ("Duplex")
Attached Dwelling ("Townhouse")
Child Care, In Home - Minor
Home occupations
<i>Uses requiring Administrative approval</i>
Accessory Dwelling
Child Care, In Home - Major
Utility Stations
<i>Uses requiring Board Approval (Conditional Use)</i>
Cottage Lots
Group Housing
Dormitories
Multi-dwelling Building ("Apartment")
Live/Work
Manufactured housing parks
Neighborhood Assembly (<350 maximum occupancy)
Primary and secondary schools
Community Athletic Field
Assisted Living / Nursing Home
Entertainment, Indoor Recreation Facility
Entertainment, Outdoor Recreation Facility
Lodging, Bed and Breakfast
Mini Storage
Office – Limited (<3,500)